

24STCV07322 24STCV07322

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-06-25

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Case Number: 24STCV07322 Hearing Date: June 25, 2026 Dept: 413

TENTATIVE RULING

Gloria

Lopez v. KMC Landscaping Services, Inc., Case No. 24STCV07322

Defendant's

Motion to Quash or Modify Notice to Appear and Produce Documents at Trial;

Request for Protective Order

Hearing Date:

June 25, 2026

On

March 19, 2026, defendants KMC Landscaping Service, Inc. and Mtthew Cohick filed a Motion to Quash or, in the Alternative, to Modify Notice to Appear and Produce Documents at Trial; Request for Protective Order. Defendants seek an order quashing the Notice to Appear and Produce ("Notice") served on February 13, 2026, as overbroad and violative of Defendants' right to privacy. Such an order is authorized by section 1987.1(a) of the Code of Civil Procedure.

Plaintiff

filed no opposition to the motion.

The

Notice is overbroad and more in the nature of a discovery request than a proper notice to produce documents at trial. Section 1987(c) requires the notice to "state the exact materials or things desired and that the party or person has them in his or her possession or under his or her

control.” The Notice does not provide that information.

In addition, any request to produce at trial financial documents is premature under section 3295(a), as Plaintiff has not yet produce evidence of a prima facie case of liability for punitive damages pursuant to section 3294 of the Code of Civil Procedure.

One other point is that the Notice to Produce at trial states a date of production of March 3, 2026, but the trial date is July 21, 2026.

For the reasons stated above, Defendant’s Motion to Quash is granted.